



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

FORM AP-03

FILED BY THE BRIEFING PARTY
REV. 08/2026

IN THE APPELLATE COURT OF FLORIDA
DIVISION OF CRIMINAL AND CIVIL APPEALS

APPELLATE BRIEF

Initial, answer, or reply brief - the written argument on appeal

APPELLANT 	CASE NUMBER (UCN)
VS.	APPELLEE
 Full name of party	
Format: A-2026-000123 (APPELLATE COURT)	
DIVISION 	JUDGE / HEARING OFFICER
Divisions: Criminal Appeals Civil Appeals Traffic Appeals	

HOW TO USE THIS FORM

The brief is where you actually win or lose an appeal. Follow the order of the sections below - appellate courts read them in this sequence and a brief that skips the standard of review is usually rejected. Cite the record for every fact you assert.

BRIEF INFORMATION

FILED BY 	PARTY REPRESENTED 	BAR NO. 	DATE DUE MM/DD/YY	DATE FILED MM/DD/YY
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TYPE OF BRIEF

☐	INITIAL BRIEF OF THE APPELLANT The opening argument explaining why the decision below was wrong.
☐	ANSWER BRIEF OF THE APPELLEE The response defending the decision below.
☐	REPLY BRIEF OF THE APPELLANT Limited to answering points raised in the answer brief. No new issues.
☐	BRIEF ON JURISDICTION Filed in the Supreme Court to establish the basis for review.
☐	AMICUS CURIAE BRIEF Filed by a non-party with the Court's permission.

STATEMENT OF THE CASE AND FACTS

THE PROCEDURAL HISTORY AND THE FACTS, STATED FAIRLY, WITH A RECORD CITATION AFTER EVERY SENTENCE

SUMMARY OF THE ARGUMENT

YOUR WHOLE ARGUMENT COMPRESSED INTO A FEW SHORT PARAGRAPHS. MANY JUDGES READ ONLY THIS BEFORE ARGUMENT.

ARGUMENT

ISSUE I

ISSUE STATEMENT

STANDARD OF REVIEW

ARGUMENT ON ISSUE I

RULE, APPLICATION TO THE RECORD, AND WHY THE OUTCOME SHOULD CHANGE

ISSUE II

ISSUE STATEMENT	STANDARD OF REVIEW

ARGUMENT ON ISSUE II

ISSUE III

ISSUE STATEMENT	STANDARD OF REVIEW

ARGUMENT ON ISSUE III

CONCLUSION

STATE PRECISELY WHAT YOU WANT THE COURT TO DO

STANDARDS OF REVIEW RELIED ON

- ☐ De novo - pure questions of law
- ☐ Abuse of discretion - evidentiary and case management rulings
- ☐ Competent substantial evidence - findings of fact
- ☐ Mixed - facts reviewed for support, law reviewed de novo
- ☐ Fundamental error - unpreserved issues
- ☐ Harmless error - the State's burden once error is shown

TABLE OF AUTHORITIES

AUTHORITY CITED	TYPE	PAGES WHERE CITED

CERTIFICATIONS

- ☐ This brief complies with the page limit
- ☐ Every factual assertion is supported by a record citation
- ☐ A copy has been served on all parties
- ☐ The appendix is filed with this brief
- ☐ Oral argument is requested
- ☐ This brief raises no issue not preserved below, except as noted

CERTIFICATE OF SERVICE AND COMPLIANCE: I certify that this brief complies with the formatting requirements of this Court and that a copy has been furnished to all parties of record on the date written below.

COUNSEL OR SELF-REPRESENTED PARTY

Bar number if an attorney

PRINTED NAME

DATE

APPELLATE CLERK

Brief filed

PRINTED NAME

DATE